PURCHASE AND SALE AGREEMENT

Pelican Business Park | Denver, CO

Seller	Orchid Bay Ventures
Buyer	Tidewater Core Fund
Property	Pelican Business Park, 8781 Station Parkway, Denver, CO 82637
Purchase Price	$6,300,000
Effective Date	June 6, 2021

1. Purchase and Sale. Seller agrees to sell and Buyer agrees to purchase the Property known as Pelican Business Park, located at 8781 Station Parkway, Denver, CO 82637, consisting of 47,000 SF, together with all improvements, fixtures and appurtenances. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

2. Purchase Price. The purchase price for the Property shall be $6,300,000, payable at Closing by wire transfer of immediately available funds, subject to the prorations and adjustments set forth herein. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

3. Earnest Money Deposit. Within 45 business days after the Effective Date, Buyer shall deposit $126,000 with the Escrow Agent. The deposit shall become non-refundable upon expiration of the Due Diligence Period except as expressly provided. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

4. Due Diligence Period. Buyer shall have 13 days following the Effective Date to inspect the Property, review the Due Diligence Materials and terminate this Agreement in its sole discretion. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

5. Title and Survey. Seller shall convey good and marketable fee simple title to the Property by special warranty deed, subject only to the Permitted Exceptions. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

6. Representations and Warranties of Seller. Seller represents that the rent roll delivered to Buyer is true, correct and complete in all material respects and that there are no pending or threatened condemnation or litigation proceedings. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

7. Operation of the Property. Between the Effective Date and Closing, Seller shall operate the Property in the ordinary course and shall not enter into new leases or service contracts without Buyer's approval. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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8. Conditions to Closing. Buyer's obligation to close is conditioned upon delivery of tenant estoppel certificates from tenants representing at least 75% of leased area and issuance of the title policy. Time is of the essence with respect to each and every provision of this instrument. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

9. Prorations. Rents, real estate taxes, utilities and operating expenses shall be prorated as of 11:59 p.m. on the day preceding Closing based on the actual number of days in the period. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

10. Closing. Closing shall occur on or before July 21, 2021, through escrow with Cornerstone Title Agency. Possession shall be delivered to Buyer at Closing. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

11. Casualty and Condemnation. If the Property is materially damaged prior to Closing, Buyer may terminate this Agreement or proceed to close and receive an assignment of insurance proceeds. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

12. Purchase and Sale. Seller agrees to sell and Buyer agrees to purchase the Property known as Pelican Business Park, located at 8781 Station Parkway, Denver, CO 82637, consisting of 47,000 SF, together with all improvements, fixtures and appurtenances. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

13. Purchase Price. The purchase price for the Property shall be $6,300,000, payable at Closing by wire transfer of immediately available funds, subject to the prorations and adjustments set forth herein. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

14. Earnest Money Deposit. Within 9 business days after the Effective Date, Buyer shall deposit $126,000 with the Escrow Agent. The deposit shall become non-refundable upon expiration of the Due Diligence Period except as expressly provided. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Time is of the essence with respect to each and every provision of this instrument.

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Signatures

IN WITNESS WHEREOF, the parties have executed this instrument as of the date first written above.

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Orchid Bay Ventures

By: Sofia Evans Title: Managing Member Date: 06/06/2021

_____

Ironclad Distribution

By: Elena Ito Title: Managing Member Date: 06/06/2021

Exhibit A - Property

Pelican Business Park, 8781 Station Parkway, Denver, CO 82637. Parcel containing approximately 20.46 acres, together with all improvements thereon.

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